

Smt Mona Malik vs Priyank Chauhan on 30 October, 2025

HIGH COURT OF JUDICATURE AT ALLAHABAD

Neutral Citation No. - 2025:AHC:192490

HIGH COURT OF JUDICATURE AT ALLAHABAD

TRANSFER APPLICATION (CIVIL) No. - 316 of 2024

Smt Mona Malik

.....Applicant(s)

Versus

Priyank Chauhan

.....Opposite Party(s)

Counsel for Applicant(s)

:

Santosh Singh

Counsel for Opposite Party(s)

:

Markandey Rai, Pradeep Kumar Rai, Sandeep Kumar Rai

Court No. - 55

HON'BLE CHANDRA KUMAR RAI, J.

Reserved on 03.09.2025 Delivered on 30.10.2025.

HON'BLE CHANDRA KUMAR RAI, J.

1. Heard Sri Santosh Singh, learned counsel for the applicant and Sri Markandey Rai as well as Sri Pradeep Kumar Rai, learned counsel for the opposite party.

2. Brief facts of the case are that applicant/wife filed an application on 11.08.2021 under Section 125 of Criminal Procedure Code herein after referred to as Cr.P.C. before Principal Judge, Family Court, Meerut for maintenance against opposite party/husband. Applicant/wife filed a complaint case no. 930 of 2021 under Section 498A, 323, 504, 506 IPC and Section 3/4 Dowry Prohibition Act against the opposite party/husband, which is pending before Judicial Magistrate, Meerut. Opposite party/husband also filed a complaint case no. 4224 of 2021 against applicant/wife and her parents under Section 379, 406, 389, 506 IPC, which is pending before Additional Chief Judicial Magistrate, Court No. 3, Meerut. A Civil Suit No. 214 of 2021 for permanent injunction has been filed by Dr. R.P. Singh father of opposite party/husband impleading applicant as well as opposite party as defendants, which is pending before Civil Judge (Senior Division), Meerut. Opposite party/husband filed a case under Section 7 & 25 of Guardian and Wards Act before Principal Judge, Family Court, Meerut on 14.12.2023, which is pending. Opposite party/husband filed a case no. 2514 of 2021 on 13.10.2021 for dissolution of marriage under Section 13 of Hindu Marriage Act before Principal Judge, Family Court, Ghaziabad, which is pending. The instant transfer application has been filed on behalf of applicant/wife for following relief:-

"It is therefore most respectfully prayed that this Hon'ble Court may graciously be pleased to transfer the case no. 2514 of 2021 (Priyank Chauhan Versus Mona Malik) under Section 13(1) (ia) of Hindu Marriage Act, pending before Principal Judge Family Court, Ghaziabad to Meerut, pending before Principal Judge Family Court, Ghaziabad otherwise the applicant will suffer irreparable loss and hardship. And also pass such other and further order which this Hon'ble Court may deem fit and proper under the facts and circumstances of the case."

3. This Court entertained the matter on 25.04.2024 and passed the interim order, which runs as under:-

"Heard Sri Santosh Singh, learned counsel for the applicant and perused the record.

This transfer application has been filed by the applicant seeking transfer of Case No.2514 of 2021 (Priyank Chauhan Vs. Mona Malik) filed under Section 13(1)(ia) of Hindu Marriage Act from the court of Principal Judge, Family Court, Ghaziabad to the court of Principal Judge, Family Court, Meerut.

It is submitted by learned counsel for the applicant that it is a matrimonial dispute between the parties. The applicant wife is presently residing in district Meerut. The applicant had filed a complaint against respondent and his family members in the court of Judicial Magistrate, Meerut which was registered as Complaint Case No.930 of 2021. The respondent has also filed a complaint in the court of A.C.J.M., Court No.3, Meerut which was registered as Complaint Case No.4224 of 2021. The respondent has also filed a case under Section 7 and 25 of Guardian and Wards Act in the court of Principal Judge, Family Court, Meerut. All the three cases filed by the parties are pending in the judgeship of Meerut. The present divorce petition has been filed by respondent on altogether incorrect facts in the court of Principal Judge, Family Court, Ghaziabad only to harass the applicant. The district Ghaziabad is much away from the District Meerut. Lastly it is submitted that the applicant being deserted wife of respondent having no source of income is facing great hardship to attend the court proceedings before the Principal Judge, Family Court, Ghaziabad.

Matter requires consideration.

Issue notice to respondent. Steps be taken within a week by registered post.

List after two months.

Until further order, the further proceedings of Case No.2514 of 2021 (Priyank Chauhan Vs. Mona Malik) filed under Section 13(1)(ia) of Hindu Marriage Act pending in the court of Principal Judge, Family Court, Ghaziabad, shall remain stayed."

4. In pursuance of the order dated 25.04.2024, parties have exchanged their pleading.

5. Learned counsel for the applicant/wife submitted that in view of five cases pending between the parties at Meerut, the proceeding of divorce petition initiated by husband at Ghaziabad should be transferred to Meerut. He further submitted that applicant/wife along with her minor child is residing at Meerut but in order to harass the applicant/wife divorce petition has been filed at Ghaziabad. He placed reliance upon following judgments of Apex Court in support of his argument:-

i. 2000 o Supreme (SC) 48 Archana Singh Vs. Alok Pratap Singh.

ii. 2001(3) SLT 109 Prema Sharma Vs. Gyaneshwar Sharma.

iii. 1999 Law Suit (SC) 1423 Reena Bahri Vs. Ajay Bahri.

6. Learned counsel for the opposite party/husband submitted that divorce petition was filed on 13.10.2021 before Principal Judge, Family Court, Ghaziabad and the instant transfer application has been filed by applicant/wife before this Court on 18.04.2024. He further submitted that date for remaining cross-examination of D.W.1 was fixed when the instant transfer application was

entertained by this Court. He further submitted that this Court vide order dated 13.02.2023 passed in matter under Article 227 No. 982 of 2023 expedited the proceeding of divorce petition, but without disclosing about the expedite order dated 13.02.2023 the instant transfer application has been filed before this Court. He next submitted that transfer application filed by applicant/wife should be dismissed on the ground of concealment of material facts. He placed reliance upon the following judgments of Apex Court as well as this Court in support of his argument:-

"i. Transfer Application (Civil) No. 704 of 2021 Smt. Shalinee Dubey @ Radhika Dubey Vs. Abhishek Tripathi @ Gopal dated 23.03.2022.

ii. Transfer Petition (Civil) No. 1475 of 2021 Delma Lubna Coelho Vs. Edmond Clint Fernandes dated 18.04.2023.

iii. 2006(9) SCC 197 Anindita Das Vs. Srijit Das.

iv. (2021) 9 Supreme Court Cases 730 Abhilasha Gupta Vs. Harimohan Gupta.

v. 2025 (166) RD 191 Keshav Prasad and Ors Vs. Consolidation Commissioner 4 Others.

vi. 2023 (1) ADJ 342 (LB) Bhagwan Das Chela Balram Das Vs. District Magistrate and Others."7. I have considered the argument advanced by learned counsel for the parties and perused the record.

8. There is no dispute about the fact that five cases are pending between the parties at Meerut and one case under Section 13 of Hindu Marriage Act, 1955 filed by opposite party is pending at Ghaziabad.

9. It is material to mention that out of five cases pending at Meerut, two cases have been filed by opposite party/husband at Meerut, as such filing of divorce petition by opposite party/husband at Ghaziabad is not proper.

10. So far as stage of the case is concerned, if the prayer for transfer is allowed the further proceeding of the pending divorce petition will start in the transferee Court from the stage where it reached in the Court from where the proceeding is transferred.

11. Applicant/wife has set up the grounds for transfer of divorce petition from Meerut to Ghaziabad, although opposite party/husband has denied all the grounds set up by applicant/wife.

12. Apex Court in the case reported in 2022 SCC Online SC 2036 Ruchi Rawat Vs. Principal Judge Court, Etah and Another has followed the ratio of law laid down by Apex Court in the case of N.C.V. Aishwarya v. A.S. Saravana Karthik Sha (Civil

Appeal No. 4894 of 2022, disposed of on 18.07.2022 to the effect that it is the wife's convenience which must be looked at while considering transfer in view of the prevailing socio-economic paradigm in the Indian Society. Paragraph Nos. 4, 5, 6, 7 & 8 of the judgment of Apex Court in Ruchi Rawat (Supra) will be relevant for perusal which are as under:-

"4. It is well-settled that in matrimonial matters generally, it is wife's convenience which must be looked at while considering the transfer. In N.C.V. Aishwarya v. A.S. Saravana Karthik Sha (Civil Appeal No. 4894 of 2022, disposed of on 18.07.2022), it was held as under:-

23.11.2024"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio-convenience which must be looked at while considering transfer."

5. Having regard to the facts and circumstances of the case, we are of the view that it is just and proper to transfer the case filed by respondent no. 2 from Etah to Mathura.

6. Resultantly, the appeal is allowed. The order passed by the High Court impugned herein is set aside. We direct the transfer of Original Suit No. 23 of 2018 pending before the Principal Judge, Family Court, Etah, Uttar Pradesh to the Principal Judge, Family Court, Mathura, Uttar Pradesh forthwith. The Principal Judge, Family Court, Etah shall send the case record to the transferee court promptly and without any delay.

7. The parties are directed to bear their respective costs.

8. Pending application, if any, also stands disposed of."

13. Apex Court in the case reported in (2016) 14 Supreme Court Cases 356 Vaishali Shridhar Jagtap Vs. Shridhar Vishwanath Jagtap has transferred the proceeding of divorce petition filed by husband to the place where wife reside. Paragraph No.1 to 7 of the judgment rendered in Vaishali Shridhar Jagtap (Supra) will be relevant for perusal which are as under :-

"Leave granted.

2. The appellant is the wife of the respondent. She is aggrieved since the High Court of Bombay declined to transfer the case, filed in Mumbai by the respondent for divorce, to Barshi where the appellant resides-parental home. The Review Petition

was also dismissed. The High Court has taken the view that the appellant does not have to travel on all days for defending the case, and on the days of her travel, she will be paid a sum of rupees one thousand five hundred.

3. According to the appellant, her mother is aged and it is difficult for her mother to accompany the appellant for her travel to Mumbai. It is also stated that there are three criminal cases - one for maintenance, the second under the Prevention of Domestic Violence Act, 2005 and the third under Section 498A of The Indian Penal Code, 1860 and other related provisions, pending at Barshi, and one on the civil side for restitution.

4. The learned Counsel appearing for the respondent has vehemently opposed the prayer for transfer. It was submitted that the appellant's mother is only 60 years old and that she has two brothers. It is also pointed out that majority of the witnesses are from Mumbai and it would be difficult for them to travel to Barshi, and, in any case, the attempt is to harass the respondent-husband.

5. Admittedly, the distance between Mumbai and Barshi is around 400 kilometres. Four cases between the parties are pending at Barshi. Apparently, the comparative hardship is more to the appellant-wife. This aspect of the matter, unfortunately, the High Court has missed to take note of.

6. In view of the above, the impugned orders are set aside and the M. J. Petition No. 2287 of 2013 filed by the respondent-husband in Family Court Bandra, Bombay will stand transferred to the court of competent jurisdiction at Barshi.

7. The appeals are allowed as above. There shall be no orders as to costs."

14. In the case law cited by learned counsel for the opposite party/husband, the transfer sought by the wife has been refused in the facts and circumstances of that case and in the case law cited by learned counsel for the applicant/wife the prayer for transfer has been allowed but in the instant matter peculiar facts and circumstances is that two out of five cases, which are pending at Meerut have been filed by opposite party/husband at Meerut, as such filing of divorce petition by husband at Ghaziabad is not proper.

15. Considering the entire facts and circumstances of the case, the instant transfer application is allowed. The proceeding of case no. 2514 of 2021 under Section 13 of Hindu Marriage Act, 1955 is transferred from Family Court, Ghaziabad to Family Court, Meerut. Family Court, Ghaziabad shall transmit the record of case no. 2514 of 2021 forthwith to Family Court, Meerut and Family Court, Meerut shall decide the case no. 2514 of 2021 expeditiously preferably within a period of three months from the date of production of a certified copy of this order.

16. No order as to costs.

(Chandra Kumar Rai,J.) October 30, 2025 Neetu